PROFESSIONAL SERVICES AGREEMENT

THIS PROFESSIONAL SERVICES AGREEMENT, effective as of December 1, 2025 (the "**Effective Date**"), is made and entered into by and between CVS Pharmacy, Inc., a Rhode Island corporation, on its own behalf and on behalf of its subsidiaries and Affiliates, including without limitation, Caremark Rx, L.L.C., Aetna Life Insurance Company, Coram, LLC and each of their respective subsidiaries and Affiliates ("**CVS**"), with an office at One CVS Drive, Woonsocket, RI 02895, and CATCH Greater Houston a Texas corporation ("**Vendor**"), with offices located at 1221 McKinney Street, Suite 100, Houston, Texas 77010 (each a "**Party**" and together, the "**Parties**"). This Agreement, its Exhibits, and Statements of Work (the "Agreement) set forth the terms and conditions under which Vendor will provide certain services to CVS. The Parties agree as follows:

1. Definitions. As used in this Agreement, the following terms shall have the meanings set forth below.

A. "**Affiliate**" means another Person or Entity that is controlled by, controls, or is under common control with, a Party.

B. "**Control**" means the legal, beneficial, or equitable ownership; directly or indirectly, whether through the ownership of voting shares, by contract or otherwise. Affiliates shall include such entities whether now existing or later established by investment, merger, or otherwise, including the successors and assigns of such entities. A person or entity is an Affiliate only during the period that Control exists.

C. "**Deliverables**" means the items supplied to CVS by Vendor this Agreement, whether in hard copy, digitally, on USB drive or any other media, and which shall be fully defined and specified as well as all reports.

D. **"Underserved Business Enterprises**" mean any business located within the United States of America or a U.S. territory and that is at least fifty-one percent (51%) unconditionally owned and operated by a Person(s) who is a citizen or lawful permanent resident of the United States or a U.S. territory and either (a) is recognized by the U.S. Government as a: Small Disadvantaged Business (SDB), Small Business Enterprise (SBE), Woman-Owned Small Business Enterprise (WOSB) Veteran-Owned Small Business (VOSB), Service-Disabled Veteran-Owned Small Business (SDVOSB), or HUBZone Small Business, or (b) is any other socially and economically disadvantaged business as determined by CVS in accordance with applicable law.

E. "**Entity**" shall mean any corporation (including any non-profit corporation), general partnership, limited partnership, limited liability partnership, joint venture, estate, trust, company (including any limited liability company or joint stock company), firm or other enterprise, association, organization, or entity.

F. "**Governmental Body**" shall mean any: (a) country, nation, state, multi-national or supra-national authority, commonwealth, province, territory, county, municipality, district or other jurisdiction of any nature; (b) multi-national, supra-national, national, Federal, State, local, municipal, foreign or other government; or (c) governmental or quasi-governmental authority of any nature (including any governmental division, regulatory authority, association, council or bureau, department, agency, commission, instrumentality, official, organization, unit or self-regulatory organization, body or Entity and any court or other tribunal).

G. "**Person**" shall be broadly interpreted to mean any individual, entity or Governmental Body.

H. "**Personal Information**" has the meaning given by applicable law and includes any and all information or data (regardless of format and whether alone or in combination) that relates to an identified or identifiable individual; and is supplied to or processed by or on behalf of Vendor in connection with the provision of the Services or otherwise for or on behalf of CVS.

l. "**Services**" means services provided by Vendor to CVS pursuant to this Agreement, including all Deliverables, as set forth in this Agreement.

2. **Affiliate Rights.** CVS represents that CVS has the authority to enter into agreements on behalf of any CVS Affiliate. All of the rights granted to CVS hereunder shall extend to all CVS Affiliates existing on the Effective Date, as well as to any CVS Affiliates hereafter formed or acquired, so long as an Affiliate relationship exists. CVS is responsible for its Affiliates' compliance with the terms of this Agreement. In the event Vendor believes it has an actionable claim against CVS or any CVS Affiliate due to the failure of such CVS Affiliate to comply with the terms of this Agreement, Vendor will only seek to satisfy its claim against CVS and in consideration CVS shall, subject to the limitations set forth herein, be liable to Vendor for all costs, liabilities and damages awarded to Vendor from any breach, omission, or violation of CVS's obligations under this Agreement by any CVS Affiliate.

3. **Scope of Agreement and Standard of Work**

A. NMDOH Service Program. Vendor and CVS's affiliate Oak Streat Health, Inc. ("**OSH**") shall participate in the following care navigation program centered around screening for and supporting medical drivers of health ("**NMDOH**"):

a. Patient Identification. Patients with Aetna health care payor coverage who utilize healthcare services of OSH will be screened for NMDOH as part of their visit with an OSH provider. This information will be documented in OSH's EMR. If NMDOH needs are identified, OSH staff will inform patients of a NMDOH specialty support services available through a Community Health Worker ("CHW") engaged or employed by Vendor or Vendor's community provider partners ("**NMDOH Support Services**"). If the patient is interested in receiving NMDOH Support Services, OSH staff will get consent from the patient for a referral to Vendor to receive such services. For each such patient, OSH will send a secure referral for NMDOH Support Services through Vendor's patient management system.

b. Patient Screening and Provider Visit. When a referral is received by Vendor, an assigned CHW will contact the patient to obtain consent to receive NMDOH Support Services facilitated by Vendor. The CHW will schedule an initiating visit with a physician or nurse practitioner ("**Provider**") from a Vendor community provider partner. During the visit, the Provider will conduct a full, independent NMDOH screening to determine if there is a link between at least one health condition and a non-medical need that is negatively impacting a health outcome and/or disease. This protocol will follow Vendor's prescribed Community Health Integration ("**CHI**") and/or Principal Illness Navigation ("**PIN**") protocols. The results of this visit will be documented by the provider in the Provider's EMR. This information will also be stored in Vendor's patient management system.

c. Patient Intervention and Service Plan. After the visit, if clinically appropriate, the CHW and Provider will develop an initial CHI or PIN intervention plan and the CHW will deploy defined CHI or PIN services in accordance with provider's treatment plan. The CHW will document the following in CATCH's client management system: (i) each CHI or PIN encounter, (b) CHI or PIN outcomes of the interventions, and (iii) updates to the CHI or PIN plan based on outcomes. The CHW will also capture times of each encounter with an aggregate of time spent per patient per month within Vendor's client management system. Provider is responsible for submitting claims to Aetna's applicable health plan or benefit program for patients who receive such CHI, PIN and related services.

d. Data Reporting. CATCH will share certain outcome measures as mutually agreed for each patient reflecting the support provided by the CHW with OSH, pursuant to this the NMDOH service program, to Aetna staff in the form of monthly reports; in all cases, subject to federal and state privacy laws. The monthly reporting files will contain outcomes measures approved by the Parties.

i. The obligations of this clause (d) shall be deemed the sole "Services" for purposes of this Agreement. Further, the reports delivered under this clause (d) shall be deemed the sole "Deliverables" for purposes of this Agreement.

B. Order of Precedence and Compliance with Agreement Terms. In the event of a conflict or inconsistency between the terms of this Agreement and any Exhibit thereto, the terms of the Exhibit shall control. Vendor expressly agrees that any and all Services performed by Vendor shall be governed in all respects by, and in compliance with, the terms and conditions of the Agreement.

C. No Commitment. Except as may be explicitly set forth in this Agreement, Vendor understands that CVS offers no commitment or guarantee of any minimum purchases or revenues under this Agreement and Vendor may not be CVS's sole supplier for such types of business transactions.

D. Standard of Work. Vendor agrees to render all work in a professional and timely manner. Vendor represents and warrants that qualified personnel shall perform all Services provided hereunder in a good, timely, professional, and workmanlike manner pursuant to the applicable requirements.

E. Vendor Personnel. Without diminishing Vendor's obligation to be primarily responsible for the acts and omissions of its Affiliates, subcontractors, and agents (collectively, "**Vendor Agents**"), if CVS reasonably determines that any Vendor Agents performing hereunder is not performing in a reasonably satisfactory manner, then CVS shall provide to Vendor a written notice requesting that the Vendor Agent be replaced and stating the reason(s) therefor. At no additional cost to CVS, Vendor shall promptly replace that Vendor Agent with a person of suitable ability and qualifications. Nothing in this provision shall be deemed to give CVS the right to require Vendor to terminate any Vendor employee's employment; rather it is intended to give CVS only the right to request that Vendor discontinue using a Vendor Agent in the performance of services for CVS.

F. No Conflict and Ethics. Vendor represents and warrants that it is not a party to any contract, obligation, commitment or agreement, and that no legal impediment of any kind known to Vendor exists, that conflicts with this Agreement or could limit, restrict or impair the rights granted to CVS or prevent Vendor from performing hereunder. Vendor further represents and warrants that no outstanding, or threatened, litigation, arbitrated matter or other dispute to which Vendor is a party exists that would reasonably be expected to have a material adverse effect on Vendor's ability to fulfill its obligations under this Agreement. Vendor represents and warrants that it has full right, title and authority to perform the Services and provide CVS the rights granted hereunder. In addition, Vendor represents and warrants that the Deliverables furnished hereunder are and will be free of liens, encumbrances, claims or security interests of any kind. Vendor will avoid any employment or other activities that would give rise to a conflict of interest or an appearance of a conflict of interest or which could otherwise be inconsistent with this Agreement. Vendor shall notify CVS in writing as soon as it becomes aware of any conflict of interest, event or occurrence, actual or threatened, which materially affects Vendor's ability to provide the Services or perform any of its other obligations, under this Agreement .

   Vendor shall conduct business with CVS in accordance with the highest ethical standards, routines and procedures and in compliance with the CVS Health Supplier Ethical Standards located within the website set forth at cvssuppliers.com as may be updated from time to time. Vendor shall refrain from requesting any impermissible favors, allowances or accommodations from CVS or any of its directors, officers, employees, other Affiliates or agents. In addition, Vendor represents and warrants that it has its own company policies in place for Vendor Agents that address both harassment and discrimination as prohibited by Federal, State or local law, and workplace substance abuse prevention.

4. **Underserved Business Enterprise Utilization**. It is CVS's policy to provide maximum practicable opportunities for Underserved Business Enterprises to participate in CVS's competitive procurement activities, including subcontracting. In connection therewith, spend with Underserved Business Enterprises will be monitored by Vendor on a quarterly basis. In connection with such monitoring, at

the request of CVS, Vendor will be required to certify to CVS all direct and/or indirect spend by Vendor with Underserved Business Enterprises and provide any reasonably requested supporting documentation, during a reasonable period selected by CVS in its sole discretion. CVS does not discriminate or provide a preference in awarding or managing contracts in any manner for or against any vendor or potential vendor on the basis of race, color, religion, sex or national origin.

5. Term and Termination

A. Term. The initial term of this Agreement shall commence on the Effective Date and end on the date which is five (5) years after the Effective Date (the initial term of the agreement, together with any renewal term, is the "Term"), unless it is terminated earlier as provided in this Agreement.

B. Termination

i. Termination for Convenience. Either Party may terminate this Agreement (in whole or in part) without cause and for its convenience, by providing at least thirty (30) days prior written notice of its intent to terminate (the date termination will take effect being the "**Termination Date**").

ii. Termination for Cause

1) Termination for Cause for CVS. In the event that any one or more of the following conditions arise, CVS reserves the right to terminate this Agreement and shall have recourse to any other right or remedy under the Agreement or under law and/or equity:

a) Vendor has materially breached any provision of the Agreement and such breach remains uncured for 30 days following receipt of written notice from CVS;

b) CVS determines or discovers in good faith a security or confidentiality breach caused by Vendor's Agents resulting in a disclosure of CVS Confidential Information, as such term is defined in or contemplated by the Confidentiality Section of this Agreement.

c) Unless specifically prohibited by law, any proceedings under the bankruptcy law or any state or local insolvency statutes are filed against the Vendor which remains undismissed or undischarged for a period of 30 days; or Vendor files a petition for voluntary bankruptcy or seeks relief under any bankruptcy law or any state or local insolvency statutes; including, but not limited to, the proposed settlement of outstanding debts under applicable reorganization or insolvency laws by or against Vendor or Vendor's entry into a contract for the composition, extension, or readjustment of all or substantially all of its obligations; or Vendor's consent to the appointment of or taking possession by a receiver, trustee or liquidator of itself or its property; the marshaling of debts or assets; or Vendor's assignment for the benefit of creditors;

d) (i) Vendor's applicable licenses, certificates, permits, authorizations, or other legal credentials are suspended, withdrawn, expired, not renewed, or revoked; (ii) Vendor is indicted, convicted, or pleads guilty or no contest to any criminal charge; (iii) Vendor is suspended, excluded or debarred from participation in any government-funded health care or health benefits programs; (iv) a determination by CVS that Vendor's performance of Medicare Services, if applicable, could result in harm to enrollees in a Medicare plan; or (v) Vendor engages in fraudulent practices. Vendor shall provide CVS with immediate notice of any of the foregoing events; and/or

e) in the event Vendor undergoes a change of control and CVS, in its sole reasonable discretion, either (i) deems the new ownership to be a direct competitor of CVS, and/or (ii) does not have confidence that the new ownership has the ability or financial stability to deliver the Services and/or perform Vendor's obligations in a satisfactory manner.

2) Termination for Cause for Vendor. In the event that any one or more of the following conditions arise, Vendor reserves the right to terminate this Agreement and has recourse to any other right or remedy under the Agreement or under law and/or equity:

a) CVS has materially breached any provision of the Agreement and such breach remains uncured for 30 days following receipt of written notice from Vendor; and/or

b) Unless specifically prohibited by law, any proceedings under the bankruptcy law or any state or local insolvency statutes are filed against CVS which remains undismissed or undischarged for a period of 30 days; or CVS files a petition for voluntary bankruptcy or seeks relief under any bankruptcy law or any state or local insolvency statutes, including, but not limited to, the proposed settlement of outstanding debts under applicable reorganization or insolvency laws by or against CVS or CVS's entry into a contract for the composition, extension, or readjustment of all or substantially all of its obligations; or CVS's consent to the appointment of or taking possession by a receiver, trustee or liquidator of itself or its property; the marshaling of debts or assets; or CVS's assignment for the benefit of creditors.

C. Effect of Termination. In the event that this Agreement prior to completion of Services, Vendor and CVS's respective rights and duties shall continue in full force and effect until 12:01 a.m. (eastern time) on the Termination Date, except for any such rights and duties that survive hereunder as contemplated by Section 17.E hereof. At such time, Vendor shall discontinue Services. Vendor shall return or destroy, at CVS's direction, all CVS Confidential Information in Vendor's possession, or in the possession of any Vendor Agent, within thirty (30) days. Upon request, Vendor shall certify in writing to CVS that Vendor and Vendor Agents have returned or destroyed all such property. Following a termination, CVS shall have no further obligations to Vendor.

D. [Reserved].

6. [Reserved].

7. Confidentiality.

A. Confidentiality of Data Provided. CVS and Vendor will maintain the confidentiality of information shared between the parties in accordance with the Mutual Non-Disclosure Agreement ("NDA") between the parties with an effective date of August 22, 2025.

B. Privacy and Data Security. Vendor shall take industry standard measures to protect against and prevent security breaches, including the deployment of administrative, physical and technical safeguards for the protection, security, confidentiality and integrity of CVS data. Vendor shall further comply with the terms of the Data Security Exhibit if attached hereto as an Exhibit.

C. Protected Health Information. Vendor will, or is likely to, have access to, create, maintain, transmit and/or receive certain Protected Health Information, as defined by the Health Insurance Portability and Accountability Act of 1996, as amended ("**HIPAA**"), in conjunction with the goods and/or Services being provided under this Agreement. In conformity with the regulations at 45 C.F.R. Parts 160-164 implementing the privacy and security requirements of HIPAA (the "**Privacy and Security Rules**"), the Parties have entered into a written agreement that meets the applicable requirements of the Privacy and Security Rules and such written agreement is attached hereto and made a part hereof as an Exhibit (the "**Business Associate Agreement**" or "**BAA**"). To the extent that the terms and condition of the BAA are stricter than, conflict with, or are otherwise inconsistent with this Section or any Non-Disclosure Agreement executed by the Parties, the terms and conditions of the BAA shall prevail.

D. Firewall. Vendor acknowledges that CVS maintains a variety of confidentiality firewalls between different business units within the larger enterprise.

8. Personnel.

A. Independent Contractor. Vendor shall provide all Services hereunder as an independent contractor. Vendor acknowledges and agrees that neither Vendor nor any Vendor Agent is an agent or employee of CVS. Vendor will be solely responsible for the payment of wages, salaries, and other amounts due to and Vendor Agent in connection with this Agreement and will be responsible for all reports and obligations respecting them relating to social security, income tax withholding, unemployment insurance, workers' compensation, and similar matters. Vendor shall make no representations that it has the authority to bind CVS to any obligation to any third party.

B. No Government Employee. Vendor warrants that at no time during the twelve (12) month period prior to the Effective Date has any Vendor employee deployed to provide the Services been an employee of a Governmental Body who has been substantially involved in the procurement of CVS products for such Governmental Body.

C. Subcontracting. Prior to delegating any of Vendor's material obligations under this Agreement to a third party, Vendor shall notify CVS in writing of its intent to subcontract and provide to CVS a reasonable summary of the qualifications of such proposed subcontractor, and obtain CVS's prior written approval of the proposed subcontractor. Vendor's use of subcontractors to fulfill any of its obligations hereunder not shall release Vendor from its responsibilities under this Agreement. Vendor shall be responsible for the work and activities of its subcontractors, including its subcontractors' compliance with the terms of this Agreement. Vendor shall be responsible for all payments to its subcontractors and shall promptly pay for all materials, equipment, and labor used by Vendor in providing the Services to CVS.

D. Non-recruitment and Non-hire.
A party shall not, without the other party's prior written consent, actively recruit and employ any individual who is regularly performing work under this Agreement, and for a period of one (1) year following the cessation of such individual's work under this Agreement. The Parties agree that the following activities shall not constitute "active recruitment" and will therefore be permissible:

i. A party receives an unsolicited resume from an employee of the other party, either directly from the employee or from an employment agency or recruiter, and thereafter interviews, negotiates employment with and/or hires such employee. Resumes shall be unsolicited unless a party specifically identifies a particular employee by name in its request for resumes; or

ii. A party uses a recruiting advertisement (such as websites or advertisements in publications) not directed at any particular individual or the employees of the other party generally and thereafter interviews, negotiates employment with and/or hires an employee responding to such advertisement. Notwithstanding the foregoing, nothing contained herein shall prohibit a party from soliciting or hiring any individual (A) with whom such party or any of its representatives is already in discussions concerning possible employment prior to the Effective Date and without reference to Confidential Information of the other party or (B) who contacted such party or any of its representatives on their own initiative.

In the event of a breach of the covenant contained above, the injured party shall have the right to (i) seek an injunction against further violations of this Section; or (ii) pursue whatever other remedies are available under this Agreement or at law or in equity. In the event of dissolution or cessation of the business of a party or if a party is in material default of this Agreement, such party waives all rights in this Section and the other party may actively recruit and employ such party's employees

E. [Reserved].

9. Indemnification.

Each party (the "Indemnifying Party") agrees to indemnify, defend, and hold harmless the other party, including its officers, directors, employees, Affiliates, successors, and assigns (the "Indemnified Party"), from and against any and all third party claims, suits, allegations, proceedings, actions, injunctions, damages, losses, liabilities, costs, or expenses, including, but not limited to, reasonable attorneys' fees and costs, that the Indemnified Party may incur arising out of or related to: (i) the infringement upon or violation of any copyrights, trademarks, trade secrets, patents, or other proprietary or intellectual property rights of a third party.

In the event of a claim or threatened suit for intellectual property infringement as described above, the party providing the allegedly infringing Services (the "Indemnifying Party") shall, at its own expense, either (a) procure for the other party (the "Indemnified Party") the right to continue using the allegedly infringing Services, or (b) replace or modify such Services so that they become non-infringing. If neither option is available to the Indemnifying Party through the use of commercially reasonable efforts, the Indemnified Party will, as promptly as practicable, cease using the Services in question.

With respect to any such claim requiring indemnification under this Agreement, the Indemnified Party agrees (i) to provide the Indemnifying Party with written notice of such claim, suit, allegation, or proceeding promptly after receiving written notice thereof; (ii) to grant the Indemnifying Party the authority to proceed as contemplated herein; and (iii) at the Indemnifying Party's expense, to provide proper and reasonable information and assistance to settle and/or defend any such claim, suit, or proceeding. However, the Indemnifying Party shall not be entitled to settle or compromise any such asserted claim, suit, or proceeding without the prior written consent of the Indemnified Party, which shall not be unreasonably withheld, delayed, or conditioned. Failure by the Indemnified Party to meet the foregoing obligations shall not relieve the Indemnifying Party's obligations under this Section, except to the extent that the Indemnifying Party is legally and materially prejudiced by such failure.

10. Limitation of Liability. IN NO EVENT SHALL A PARTY OR ITS AFFILIATES BE LIABLE TO THE OTHER PARTY FOR CONSEQUENTIAL, EXEMPLARY, SPECIAL OR PUNITIVE DAMAGES, RESULTING FROM OR RELATING TO THIS AGREEMENT, WHETHER BASED ON BREACH OF CONTRACT, TORT, OR OTHERWISE, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. A PARTY'S LIABILITY FOR DAMAGES HEREUNDER SHALL NOT EXCEED FIVE TIMES THE SUM OF FEES PAID OR PAYABLE BY CVS TO VENDOR HEREUNDER. EACH PARTY SHALL HAVE A DUTY TO MITIGATE DAMAGES FOR WHICH THE OTHER PARTY IS RESPONSIBLE. THE FOREGOING LIMITATIONS WILL NOT APPLY TO:

i. Breach of confidentiality, including breaches of data security obligations by either Party; or
ii. Claims of obligation for either Party to indemnify as required in this Agreement or Claims for gross negligence, fraud, or willful misconduct by either Party.

11. Insurance.

A. During the entire Term and to the extent applicable to the Services performed, Vendor shall, at its expense, carry and maintain the following coverages underwritten by an insurance company, which holds an A- or better rating from A.M. Best.

- General Liability & Professional Liability (Philadelphia Indemnity Insurance Company) - General Liability: $1,000,000 per occurrence and $2,000,000 in the aggregate

- Directors & Officers (D&O) (ACE Fire Underwriters Insurance Company) – D&O limit of $1,000,000

- Employment Practices Liability (ACE Fire Underwriters Insurance Company) – EPL limit of $1,000,000

- Workers Compensation (Texas Mutual) – Statutory Limits

B. The following requirements apply in connection with Vendor's procurement of the above-required insurance policies:

1) "CVS Health Corporation and its Affiliates" ("**<u>CVS Health</u>**") shall be named as additional insureds on the Commercial General Liability Insurance and the Automobile Liability Insurance. To the extent Vendor maintains broader coverage and/or higher limits than the minimum requirements shown above, CVS Health shall be entitled to the broader coverage and/or higher limits maintained by the Vendor. CVS Health is the parent company of CVS.

2) Vendor hereby waives, and shall further ensure that any insurance company providing such insurance waives, all rights of recovery from CVS or any of its Affiliates with respect to any claims, liabilities, loss, damages, and costs, which are to be covered by insurance required herein;

3) All required insurance, whether issued on a primary or excess basis, shall be primary insurance to any other insurance available to CVS and that any other insurance available to CVS shall be excess and shall not be combined with Vendor's insurance;

4) Required limits may be satisfied by a combination of primary and excess/umbrella policies.

5) If any of the required liability insurance is on a "claims made" form, such insurance shall have a retroactive date no later than the Effective Date and Vendor shall maintain in effect such insurance for a period of no less than thirty-six (36) months from the expiration or termination of the applicable SOW giving rise to the claim.

6) Vendor may not self-insure; however, such insurance may contain deductible or self-insured retention amounts no greater than $500,000 each occurrence, accident or claim without CVS's prior written authorization. CVS shall not be required to pay any deductible or self-insured retention amounts;

7) Vendor shall, upon renewal of its policies provide to CVS a copy of its Certificates evidencing that insurance required hereunder have been renewed. Upon request, Vendor shall provide CVS complete copies of the policies and their endorsements. CVS's failure to request such policies shall not relieve Vendor of its obligations under this Agreement to procure and maintain such insurance. In the event Vendor fails to procure and maintain insurance as required in this Section, CVS shall have the right to withhold payments otherwise owed until such insurance is acquired.

12. Warranties and Compliance with Laws

A. <u>Compliance with Laws</u>. Each Party represents and warrants that the performance of its obligations under this Agreement are, and will be, in compliance with all applicable laws, ordinances, orders, directions, rules and regulations of the local, Federal, State, county and municipal governments applicable thereto, all as they may be amended from time to time, including and not limited to any laws herein referenced.

B. <u>Compliance with Anti-corruption Laws</u>. Vendor shall comply with any and all applicable anti-corruption and anti-money laundering and financial sanctions laws. Vendor acknowledges that, in connection with this Agreement, it is not aware of: (i) any offer, promise, payment, or advantage given to another person with the intent to induce or reward a person to perform a function improperly; (ii) any offer, promise or payment or other value provided to a government official for the purposes of influencing an official act or decision or to otherwise secure an improper advantage for CVS; or (iii) any payment or other transaction by or on behalf of CVS that is not fully and appropriately reflected in Vendor's books and records.

Vendor agrees that CVS shall not be liable to Vendor for any payments under this Agreement to the extent such payments would violate any United States, United Nations, or European Union economic or trade sanctions. Without limiting the generality of the forgoing, CVS shall not be liable to Vendor for the payment of any Services provided by a person or in a country under sanction by the US unless permitted under a written Office of Foreign Assets Control license and approved in writing by CVS. To the extent any such payments are made to Vendor by CVS in violation of US, UN or EU trade sanctions, upon such determination by either Party, Vendor shall promptly refund such payments to CVS and cease performance of the associated Services.

C. Equal Opportunity. Vendor represents and warrants that it does not discriminate in any manner against any employee, applicant for employment, or subcontractor on the basis of sex, race or ethnicity, religion, color, age, disability status, marital or family status, sexual orientation, gender identity or expression, military or veteran status, national origin, or any other characteristic protected under federal, state, or local law. Vendor further represents, warrants and certifies that it shall comply in all respects with all applicable anti-discrimination Laws. CVS is an equal opportunity employer and federal contractor or subcontractor. Consequentially, the parties agree that as applicable they will abide by the requirements of 41 CFR 60-300.5(a) and 41 CFR 60-741.5(a) and that these laws are incorporated herein by reference. These regulations prohibit discrimination against qualified individuals based on their status as protected veterans or individuals with disabilities. These regulations require that covered prime contractors and subcontractors take affirmative action to employ and advance in employment and otherwise treat qualified individuals without discrimination based on their status as protected veterans or individual with a disability. The parties also agree that, as applicable, they will abide by the requirements of Executive Order 13496 (29 CFR Part 471, Appendix A to Subpart A), relating to the notice of employee rights under federal labor laws.

D. Compliance with Employment Laws. Vendor represents and warrants that it will comply with all applicable Federal, State and local laws, orders and regulations related to, but not limited to, equal employment opportunity, non-discrimination within the workplace, providing a drug-free workplace, anti-child or anti-forced labor, health and safety of employees, payment of employee wages and benefits, and employee work hours and overtime. As applicable, Vendor shall comply with federal posting obligations set forth at 29 CFR Part 471, Appendix A to Subpart A. Vendor Agents shall not be employees of CVS or any Affiliate for any purpose, including, without limitation, Federal, State and local taxes, including the Federal Insurance Contribution Act and the Federal Unemployment Tax Act and all insurance coverage, unemployment compensation and workers' compensation benefits. All Vendor Agents who work in the US must have a valid social security number or shall be authorized to work in the US at the job and location to which they are assigned. Vendor warrants that Vendor is in compliance with the Immigration Reform and Control Act of 1986, as amended, including the E-Verify rules at 48 C.F.R. 22.1800 *et seq.*; 48 C.F.R. 52.222-54, with respect to such Vendor's US domestic employees.

E. Accessibility Compliance. Vendor represents and warrants that any digital assets developed for CVS pursuant to this Agreement shall conform to the accessibility standards of WCAG 2.1 A/AA (Web Content Accessibility Guidelines) and/or any applicable Federal and State disability laws. For the purposes of this Section, "digital assets" may include, but are not limited to, websites, software applications, mobile apps, online PDF documents and videos.

F. [Reserved].

G. Debarment. Each Party represents and warrants that neither it, nor any of its employees or agents working on its behalf and providing items and Services pursuant to this Agreement: (i) is currently an Ineligible Person; (ii) has been charged with a criminal offense that falls within the ambit of 42 U.S.C. § 1320a-7(a) or § 1320a-7(b)(l)-(3); or (iii) has been proposed for exclusion, debarment, suspension, or other ineligibility from any Federal health care program or Federal procurement or non-procurement program. Each Party further represents, warrants and covenants that if, during the Term, it or, with respect to any of its employees or agents working on its behalf and providing items and Services pursuant to this Agreement, it has actual notice that such employee or agent: (i) becomes an Ineligible Person, (ii) is charged with a criminal offense that falls within the ambit of 42 U.S.C. § 1320a-7(a) or § 1320a-7(b)(l)-(3), or (iii) is proposed for exclusion, debarment, suspension, or other ineligibility from any Federal health care program or Federal procurement or non-procurement program, that Party will immediately notify the other Party, and such other Party will have the right to immediately terminate this Agreement. For purposes of this Section, "**Ineligible Person**" means an individual or entity who: (i) is currently excluded, debarred, suspended, or otherwise ineligible to participate in the Federal health care programs or in Federal procurement or non-procurement programs; or (ii) has been convicted of a criminal offense that falls within the ambit of 42 U.S.C. § 1320a-7(a), but has not yet been excluded, debarred, suspended, or otherwise declared ineligible. Each Party agrees to indemnify, defend, and hold harmless the other Party, its officers, directors, shareholders, employees, agents, representatives, other Affiliates, and assigns (the "**Debarment Indemnitees**") from any and all liabilities, losses, claims, damages, obligations, costs, and expenses (including, without limitation, penalties, fines, sanctions, any legal and accounting fees and expenses, any costs of litigation, investigation and settlement) that the Debarment Indemnitees may incur or suffer as a result of, arising out of, or in any way connected with breach by such Party of any of its representations, warranties or covenants contained in this Section. The foregoing indemnity obligation is in addition to, and not in lieu of, any other obligation to indemnify arising out of this Agreement.

H. Vendor Locations. Vendor represents and warrants that no Vendor facility or work location is in a country or location that has been (i) placed on, and continues to be on, any Federal terrorism or security watch list, evacuation list or travel embargo for U.S. citizens or their dependents by the U.S. Department of State or other U.S. government agency or instrumentality; or (ii) declared by the U.S. Government to be, and continues as, an "enemy" country (under the Trading with the Enemy Act of 1917, 50 U.S.C. App., §1 et seq., the Homeland Security Act of 2002, H.R. 5005, 107th Cong., 2nd Sess. (signed Nov. 25, 2002), or other U.S. law), or into which the U.S. government has sent any troops without the authorization of the host government. CVS may terminate this Agreement without cause and without termination penalty if Vendor violates the Homeland Security Act of 2002, the USA Patriot Act, or any rule, decision or regulation thereunder.

I. [Reserved].

J. Disabling Code/Malware. Vendor represents and warrants that it uses industry standard technology to prevent all forms of harmful surreptitious code or other contaminants, including commands, instructions, devices, techniques, bugs, or web bugs, or other malware (collectively, "**Malware**") from being introduced into any computer system, network, database, software, equipment, web site, or processes used to provide the Services under this Agreement. Vendor further represent that it will not insert or otherwise introduce into CVS systems and data processing environments any code that would have the effect of disabling or otherwise shutting down all or any portion of CVS's business operations without CVS's prior written consent. If Vendor is responsible for introducing Malware into any CVS environment or system, Vendor shall promptly, at no additional charge to CVS, assist in mitigating the effects of the Malware. If the Malware causes an interruption of Services, a loss of operational efficiency or loss of data then Vendor will, at no additional charge to CVS, assist CVS to mitigate and restore such losses.

13. Intellectual Property Rights

A. Pre-existing CVS Materials. The Parties acknowledge that during the course of projects under this Agreement, CVS may provide or otherwise make available to Vendor various proprietary creations, including without limitation data, information, materials, methods, ideas, concepts, know-how, techniques, specifications, program organization or database structuring techniques that have been previously developed by CVS or developed by CVS independent of such projects, or, in each case, by an Affiliate of CVS ("**Pre-Existing CVS Materials**"). CVS shall retain, and nothing contained in this Agreement shall affect, its ownership rights in the Pre-Existing CVS Materials even if incorporated into Deliverables furnished by Vendor hereunder.

B. Pre-existing Vendor Materials. The Parties acknowledge that during the course of performing Services under this Agreement, Vendor may provide or otherwise make available to CVS various proprietary creations, including without limitation data, information, materials, methods, ideas, concepts, know-how, techniques, program organization or database structuring techniques that have been previously developed by Vendor or developed by Vendor independent of Services performed for CVS hereunder ("**Pre-Existing Vendor Materials**"). Vendor shall retain, and nothing contained in this Agreement shall affect, its ownership rights in the Pre-Existing Vendor Materials. To the extent that any Pre-Existing Vendor Materials are incorporated into any final Deliverable, Vendor grants to CVS a perpetual, royalty free license to use the Pre-Existing Vendor Materials to the extent reasonably necessary for CVS or any Affiliate to make authorized use of the Deliverable into which the Pre-Existing Vendor Materials have been incorporated.

i. [Reserved].

C. Relation to Confidential Information. This Section is in addition to, and not in lieu of, the Parties' respective rights and obligations under the Confidentiality section of this Agreement with respect to Confidential Information.

14. Right to Audit. No more than once every 12 months, CVS shall have the right to audit the Vendor's business and operations as they pertain to this Agreement to validate Vendor's performance under this Agreement, including but not limited to Vendor's billing practices and procedures and adherence to applicable service level agreements. CVS's right to audit expressly extends to third party auditors hired on CVS's behalf and CVS's regulators and/or accreditation agencies. CVS agrees to provide reasonable advance written notice of its intent to perform an audit, and CVS shall perform any such audit at mutually agreed to times during regular business hours, subject to Vendor's reasonable security and confidentiality procedures. Vendor shall provide to CVS onsite access to Vendor's premises as necessary to conduct the audit. In lieu of onsite access to Vendor's premises, Vendor shall provide to CVS virtual access to information and/or documents as necessary to effectuate CVS's audit rights. All such audits shall be at CVS's sole costs.

For clarity, the audit rights stated in this Section are in addition to, and not in lieu of, CVS's right to perform security assessments set forth in an applicable Data Security Exhibit or Business Associate Agreement (if included).

Following an audit, CVS may provide a written report of its findings to Vendor, including a reasonable timetable for correction of deficiencies uncovered during the audit. Vendor agrees that its failure to remediate audit deficiencies within a reasonable period is a breach of this Agreement. CVS's right to audit pursuant to this Section shall survive termination or expiration of this Agreement for a period of three (3) years after such termination or expiration.

15. Dispute Resolution, Governing Law, Jurisdiction

A. Dispute Resolution. Prior to the initiation of any litigation, the Parties shall first attempt to resolve their dispute informally. Every effort should be made to resolve all disputes at the lowest possible level of authority. The Parties will use commercially reasonable efforts to arrange personal meetings and/or telephone conferences as needed with those individuals properly empowered to negotiate and enter into a settlement of the dispute on their respective company's behalf.

B. Governing Law. The formation and performance of this Agreement shall be governed and interpreted by the internal laws of the State of New York, disregarding, however, any applicable conflicts of law provisions that would require the application of the law of another state.

C. Jurisdiction. Vendor consents to the jurisdiction of the Federal courts located within the County of New York, New York with respect to any litigation arising from or related to this Agreement. The prevailing Party in any litigation shall be entitled to seek reasonable attorney's fees from the other Party. TO THE FULLEST EXTENT PERMITTED BY LAW, THE PARTIES HEREBY WAIVE TRIAL BY JURY IN CONNECTION WITH ANY LITIGATION ARISING UNDER OR RELATED TO THIS AGREEMENT.

16. Business Continuity and Disaster Recovery.

Vendor shall have reasonable business continuity and disaster recovery plans in place to (i) address the loss of products, services and/or technology and third-party providers; (ii) minimize the impact of disruptions to Vendor's critical business processes and provide coordinated responses to potential or actual disruptions; and (iii) coordinate restoration activities once a disruption has ended. Vendor shall provide a copy of its business continuity and disaster recovery plans to CVS upon reasonable written request. Annually, Vendor shall assess and update its business continuity and disaster recovery plans in light of current business and technology risks, and upon reasonable written request shall attest to CVS that it has assessed and updated its business continuity plan and capabilities accordingly.

17. General Provisions

A. Assignment. Neither Party may assign its rights or delegate its obligations under this Agreement without the prior written consent of the other Party, which consent shall not be unreasonably withheld, conditioned or delayed. Notwithstanding the foregoing, either Party may assign its rights and obligations under this Agreement, in whole or in part, to an Affiliate or in the event of a merger, sale of a business unit, or majority stock ownership. Such assignment will be effective without the consent of the other Party, provided that the party assuming obligations both (a) agrees to do so in writing and has adequate resources to meet its obligations hereunder, and (b) is not a direct competitor of the non-assigning Party. Any attempted assignment not in accordance with this Section shall be null and void. Upon completion of any assignment under this Section, the assigning Party shall have no further liability with respect to any of the rights or obligations assigned.

B. Notices. All Notices asserting the legal or contractual rights of the Parties under this Agreement ("***Notices***") will be in writing, will reference this Agreement, and shall be made by registered or certified mail or by overnight courier service with a tracking number mailed to the addresses noted below. These addresses may be changed by either Party by written Notice to the other Party.

To CVS:
CVS Pharmacy, Inc.
One CVS Drive
Woonsocket, Rhode Island 02895
Attention: Anna Umberto, Vice President, Enterprise Procurement
Copy To: Corporate Legal

To Vendor:
CATCH Greater Houston
1221 McKinney Street, Suite 100, Houston, Texas 77010
Attention: Dr. Janice Sparks

Notices shall be considered to be received on the business day following the date on which notice was provided in accordance with this section.

C. Miscellaneous. If any provision of this Agreement or the application thereof shall to any extent be invalid or unenforceable, the remainder of this Agreement or the application of such provision to persons or circumstances other than those to which it is held invalid or unenforceable shall not be affected thereby, and each provision of this Agreement shall be valid and enforceable to the fullest extent permitted by law. Paragraph headings used herein are for reference purposes only and shall not be interpreted to limit or affect in any way the meaning of the language contained in such paragraphs. The Parties agree that this Agreement is the result of careful negotiations between the Parties. Any principle of construction or rule of law that provides that, in the event of any inconsistency or ambiguity in such agreement, an agreement shall be construed against the drafter of the agreement, shall not apply to the terms and conditions of this Agreement. Waiver of any provision of this Agreement by a Party at any time shall not constitute a waiver of any other provision of this Agreement, or waiver of the same provision at any other time.

D. Force Majeure. Neither Party shall be liable to the other Party or deemed to be in default for any delay or failure in performance of any obligation under the Agreement or interruption of service to the extent resulting from acts of God, civil or military authority, acts of the public enemy, acts of terrorism, war, riots, civil disturbances, insurrections, accidents, fire, explosions, earthquakes, floods, pandemics, the elements or any other cause beyond the reasonable control of such Party. The Party claiming such force majeure event shall give timely written notice to the other Party and shall use due diligence to mitigate the situation. Such force majeure event shall not relieve the non-performing Party of liability in the event of its concurrent negligence, failure to use due diligence to remove the cause of the force majeure event in an adequate manner and with all reasonable dispatch. In addition, a force majeure event shall not relieve the non-performing Party of its obligations to perform under this Agreement if such default or delay could have been prevented by reasonable precautions or could have been circumvented by the non-performing Party through the reasonable use of alternate sources, business continuity planning, work around planning or other means.

E. Survivability. All sections of the Agreement that by their nature should survive the termination or expiration of this Agreement shall so survive, including but not limited to those terms relating to Affiliate rights, confidentiality, limitation of liability, indemnification, intellectual property, insurance, taxes, right to audit, use of names and marks, and compliance with laws.

F. Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed to be an original but all of which together shall constitute one and the same instrument. This Agreement or any counterpart may be executed with a signature that may be either handwritten or electronic and may be delivered by facsimile or by electronic image scan, or an email transmission of the executed signature page of this Agreement (including by way of attachment to electronic mail) receipt acknowledged, to the other Party, each of which shall be deemed to be an original. Each party hereby agrees that, to the extent it chooses to execute this Agreement electronically, such electronic signature is equivalent to a handwritten signature on paper and shall have the same binding legal effect as if the Agreement were personally signed by that party on paper.

G. [Reserved].

H. Non-Publicity. Neither Party shall use the name, trade name, service marks, trademarks, trade dress, logos of the other in customer lists, publicity releases, advertising, promotional materials, direct mail, seminars, on that Party's web site, social media channels, or in other communications without the express prior written consent of the other's duly authorized representative. Without limiting the generality of the foregoing sentence, Vendor shall not issue a press release or other form of public communication using CVS's name or the name of any CVS Affiliate without the prior written consent of CVS's Corporate Communications Department. Neither Party shall have, or acquire, rights on the trademarks or logos of the other Party. If Vendor is performing any Services which would require the use of a CVS or CVS Affiliate corporate logo(s) and/or brand design, Vendor shall adhere to the brand standards provided to Vendor in the provision of the Services. Guidelines for using CVS trademarks and logos are available at http://www.cvsstyleguide.com, which may be updated and amended by CVS from time to time.

I. Entire Agreement. This Agreement, including all Exhibits issued hereunder, constitutes the entire agreement between the Parties in connection with the subject matter hereof and supersedes all prior agreements, understandings, negotiations, usage of trade, course of dealing or performance, understanding or agreement purporting to modify or vary the terms or conditions of this Agreement, and/or discussions, whether oral or written, between the Parties. No amendment to or modification of this Agreement will be binding unless in writing and signed by a duly authorized representative of CVS and Vendor. Notwithstanding the foregoing, upon the enactment of any law or regulation which requires compliance by CVS, and/or Vendor on CVS's behalf, or the publication of any interpretive policy or opinion of any governmental agency charged with the enforcement of any such law or regulation, CVS may, by written notice to Vendor, amend this Agreement in such manner as CVS determines necessary to comply with such law or regulation. Such amendment shall be effective upon written notice by CVS to Vendor.

J. Exhibits
The following Exhibits are applicable to the Services performed by Vendor and are incorporated by reference into this Agreement:

Exhibit A: Business Associate Agreement

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be executed by their respective duly authorized officers or agents as of the date first above written.

CVS Pharmacy, Inc.		CATCH Greater Houston	
By:	Anthony Marini Anthony Marini (Jan 21, 2026 17:50:23 EST)	By:	Janice Sparks Janice Sparks (Jan 21, 2026 16:47:31 CST)
Name:	Anthony Marini	Name:	Janice Sparks
Title:	AVP, Enterprise Procurement	Title:	Executive Director
Date:	01/21/2026	Date:	01/21/2026

EXHIBIT A
BUSINESS ASSOCIATE AGREEMENT
(To be attached as a separate agreement)